IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.130

C.P.(CAA)/75(AHM)2022 in
C.A.(CAA)/7(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Aadarshini Construction Pvt Ltd **.....Applicants**
Dipali Organisor Pvt Ltd
S N Infraspace Pvt Ltd
S N Realties Pvt Ltd
S N Realty Construction Pvt Ltd
Sharanam Construction Pvt Ltd
Shaswat Realties Pvt Ltd
Shivalik Developers Pvt Ltd
Shivalik Home Services Pvt Ltd
Shivalik Infra-Projects Pvt Ltd
Shivalik Plaza Pvt Ltd
Shivalik Realty Sthaptya Pvt Ltd
Taral Properites Pvt Ltd
Shivalik Develpoers And Realty Pvt Ltd

Order delivered on: 06/03/2023

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

Mr. Kiran Shah, Advocate along with Ms. Nupur Shah, Advocate and Mr. Bhavesh Thakkar, PCS.
Ms. Kinjal Trivedi, Advocate, on behalf of Ms. Maithili D. Mehta, Advocate for the Income Tax Department.

ORDER

Heard Ld. Counsel for the applicants and Ld. Counsel for the Income Tax Department.

Ld. Counsel for the Income Tax Department submitted that the Department has considered the contents in the Scheme that the income tax liabilities of the Transferor Companies will be taken over by the Transferee Company and as far as the rectification of record is concerned, matter is still under consideration.

With this, the order is reserved.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

Sudha